

The Airports Economic Regulatory Authority of India (Salary, Allowance And Other Conditions Of Services Of Secretary) Rules, 2009

Source: <https://indiankanoon.org/doc/46995682/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

0

, Cited by

0

]

Union of India - Act

The Airports Economic Regulatory Authority of India (Salary, Allowance And Other Conditions Of Services Of Secretary) Rules, 2009

UNION OF INDIA

India

The Airports Economic Regulatory Authority of India (Salary, Allowance And Other Conditions Of Services Of Secretary) Rules, 2009

Rule

THE-AIRPORTS-ECONOMIC-REGULATORY-AUTHORITY-OF-INDIA-SALARY-ALLOWANCE-AND-OTHER-CONDITIONS-OF-SERVICES-OF-SECRETARY-RULES-2009 of 2009

Published on 13 May 2009

Commenced on 13 May 2009

[This is the version of this document from 13 May 2009.]

[Note: The original publication document is not available and this content could not be verified.]

The Airports Economic Regulatory Authority of India (Salary, Allowance And Other Conditions Of Services Of Secretary) Rules, 2009

Published vide G.S.R. 322(E), dated 13.5.2009, published in the Gazette of India, Extraordinary, Part II, Section 3(i),

dated 13.5.2009.

256.

In exercise of the powers conferred by clause (e) of sub-section (2) of section 51 of the Airports Economic Regulatory Authority of India Act, 2008 (27 of 2008), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement .-(1) These rules may be called The Airports Economic Regulatory Authority of India (Salary, Allowance and Other Conditions of Services of Secretary) Rules, 2009.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Airports Economic Regulatory Authority of India Act, 2008;

(b)

"Secretary" means the Secretary of the Authority;

(c)

All other words and expressions used and not defined in these rules but defined in the Act shall have the meanings respectively as assigned to them in the Act.

3.

Salary of Secretary .-The Secretary shall be entitled to a monthly salary in the Pay Band 4- Rs. 37,400-67,000 with grade Pay of Rs. 10,000.

4.

Conditions of service .-The allowances, leave, joining time, joining time pay, age of superannuation and other conditions of service of Secretary, shall be regulated in accordance with such rules and regulations as are, from time to time, applicable to the officers and employees of the Central Government belonging to Group 'A' and drawing equivalent grade pay.

5.

Accommodation .-(1) Where the Secretary is a Government employee on deputation to the Authority and has been allotted residential accommodation under General Pool shall be eligible to retain the facility of Government residential accommodation and in case Government residential accommodation has not been allotted or availed, he shall be eligible for House Rent Allowance at par with Central Government servant drawing equivalent pay.

(2)

Where the Secretary is not appointed on deputation from the Government shall be entitled to House Rent Allowance at par with those applicable to Central Government servant drawing equivalent grade pay.

6.

Medical treatment .-(1) Outdoor medical expenses .-The Secretary shall be eligible to get medical reimbursement for self and declared members of family.

Explanation .-For the purpose of this clause, the expression "family" has the same meaning as assigned to it in the Central Services (Medical Attendance) Rules, 1944.

(i)

The reimbursement of outdoor medical expenses shall be limited to the actual expenses or one month's pay on 1st January of the year (Basic pay + Dearness Allowance) whichever is less. The claim should be supported by Doctor's prescription who are authorised by the Authority and the original cash memos/bills for treatment by the Doctor's and purchase of medicine. Release of increment or promotion during the year shall not affect the limit as on 1st January of the year. In case Secretary joins the Authority during the year, the annual entitlement shall be restricted on pro-rata basis.

(ii)

The outdoor treatment shall be taken from the Authorised Medical Practitioner from the panel to be maintained by the Authority.

(2)

Indoor treatment--(i) For the purpose of indoor treatment the secretary shall be entitled for medical treatment at

hospitals authorised by the Authority in this behalf, and for the purpose cost of treatment including hospital accommodation, nursing home facility, etc., shall be as per the provisions of the Central Services (Medical Attendants) Rules, 1944 as applicable to the Central Government employees drawing equivalent grade pay;

(ii)

the authorised hospitals for the purpose of (i) above shall be the same as are available to the Central Government employees regulated by Central Services (Medical Attendance) Rules, 1944;

(iii)

treatment at authorised hospitals may be taken on the advice of the authorised Medical Practitioner of the Authority except in emergency.

7.

General Provident Fund (GPF) or Contributory Provident Fund (CPF), Pension and Gratuity .-(i) In case the Secretary is not appointed on deputation from the Government, he shall be entitled to subscribe to Contributory Provident Fund and shall be regulated by the Contributory Provident Fund Rules, 1962;

(ii)

in case the Secretary is appointed on deputation, he shall continue to be governed by Provident Fund Scheme as is applicable to him in his parent Ministry or Department or organisation;

(iii)

in case the Secretary is not on deputation, he shall be eligible for payment of gratuity as per the Gratuity Act, 1976;

(iv)

in case the Secretary is not appointed on deputation, he shall be entitled to Group Insurance benefit as per the Scheme to be formulated by the Authority in consultation with the Central Government:

Provided that such Secretary shall not be entitled to get pension.

8.

Travelling allowances in respect of foreign tours .-(1) Deputation of Secretary abroad .-The deputation of the Secretary to abroad shall be allowed by the Chairperson.

(2)

Entitlement for travel by Air .-The Secretary shall be entitled to travel abroad by Air at par with facilities available from time to time to the Central Government employees drawing equivalent grade pay.

(3)

Per diem halting allowance .-While on foreign tour, the Secretary shall be entitled to draw per diem allowance at the rate of US\$ 350 per day and for Nepal, the rate shall be US\$ 250 per day (to be paid in Indian currency):

Provided that-

(a)

the proposed per diem would be a consolidated amount limited to actual subject to production of vouchers covering room rent, taxi charges, entertainment if any, official telephone calls, daily allowance at the rate available from time to time to Central Government employees drawing equivalent grade pay and other contingent expenditure.

(b)

if full hospitality (i.e., lodging and boarding) is provided by the host organisation of official agencies, Indian Missions, the incidental expenses would be US\$ 100 per diem for the entire period of stay. In case of Nepal, the same would be US\$ 50 per diem. In such a case, economy cut, if any, as applicable to the Central Government officers shall also apply at the rate of US\$ 100 or US\$ 50, as the case may be.

(c)

in case only free lodging is provided, cash allowance at the rate of 50% of the per diem at normal rate would be applicable.

(d)

in case of stay beyond seven consecutive days, the per diem from the 8th to 28th days shall be US\$ 250 and the rate of per diem for stay beyond twenty eight days consecutively shall be decided on case to case basis keeping in view the facilities provided.

(e)

in case the lodging and transport arrangements are made through the concerned Indian Mission abroad, only daily allowance at the rate available from time to time to Central Government employees drawing equivalent grade pay and

other contingent expenditure shall be admissible.

9.

Residuary matters .-Matters relating to the terms and conditions of service of the Secretary with respect to which no express provision has been made in these rules, shall be such as are admissible to a Group "A" officer of the Central Government drawing an equivalent grade pay.

Related AI tags, queries and research notes

Translation